

Court No. - 32

Case :- WRIT - C No. - 25861 of 2018

Petitioner :- Phool Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ramesh Kumar Ojha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

By means of this writ petition, the petitioner is seeking remedy against the demand notice and recovery citation issued by respondent no.3 on 27.04.2018 for a sum of Rs.80,025/-.

The grievance raised by the petitioner is that under one time settlement scheme arrived between him and the Electricity Department, he has already made deposit. However, he is still ready to deposit the amount provided some relief in the nature of payment of easy installment mode is granted.

Per contra, learned counsel appearing for the Electricity department has contended that the petitioner has an alternative remedy to approach before the authority concerned under Section 6.14 of the Electricity Supply Code, 2005 and in the event if any such application is moved, there is no reason why the concerned respondent shall not entertain the same.

In view of the above facts and circumstances, we, therefore, direct that the petitioner to move appropriate application under Section 6.14 of the Electricity Supply Code, 2005 and in case such application is made within a period of 15 days from today, the same shall be decided with a reasoned and speaking order within a period of 30 days from the date of presentation of the certified copy of this order.

With the above directions/ observations, the writ petition is disposed of.

Order Date :- 2.8.2018

Atmesh